

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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KEITH MURPHY,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ELYSE MARTINEZ,
Shield No. 12566, Individually and in her Official
Capacity, and SGT. DAVID REILLY, Shield No. 04245,
Individually and in his Official Capacity, SGT. DAVID
CUCE, Shield No. 1819, Individually and in his Official
Capacity, and P.O.'s "JOHN DOE" #1-10, Individually
and in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

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**AMENDED
COMPLAINT**

**10 CV 7844
JURY TRIAL DEMANDED**

ECF CASE

Plaintiff KEITH MURPHY by his attorney, Jon Norinsberg, complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and
attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil
rights, as said rights are secured by said statutes and the Constitutions of the State of New York
and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C.

§ 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff KEITH MURPHY is an African American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. At all times hereinafter mentioned the individually named defendants P.O. ELYSE MARTINEZ, SGT. DAVID REILLY, SGT. DAVID CUCE, and P.O.'s "JOHN

DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On or about July 30, 2008 at approximately 11:00 p.m., plaintiff was lawfully present in the back passenger seat of a friend’s car in the vicinity of Delancey and Clinton Streets in New York County in the City and State of New York.

14. At the aforesaid time and place, two plain clothed officers approached the aforementioned vehicle and tapped their guns on the window but did not identify themselves as police officers.

15. Fearing for their safety, and unaware that the armed individuals were police officers, the driver of the vehicle sped away.

16. An unmarked vehicle followed the car plaintiff was in and smashed into the side of it, causing the car to crash into a brick wall, deploying the airbag and knocking plaintiff unconscious.

17. At no time during the pursuit did defendants identify themselves as police officers or use lights or sirens of any kind.

18. Notwithstanding the fact that plaintiff had committed no crime or violation of law, defendants dragged plaintiff out of the car, arrested him, and charged him with Criminal Possession of Marijuana.

19. At no time had plaintiff or any of the other occupants possessed or controlled any marijuana.

20. Plaintiff was taken into police custody, subjected to an invasive strip search, hit about the head and face, and an earring was ripped from his ear.

21. At no time did defendant officers possess the particularized suspicion necessary to justify a strip search.

22. Upon his release on bail, plaintiff KEITH MURPHY sought medical attention at New York Downtown Hospital for neck and back pain; ailments that continue to this day and significantly hinder his movement and quality of life.

23. In connection with the unlawful arrest, defendants filled out false and misleading police reports and forwarded said reports to prosecutors in the District Attorney's Office.

24. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

25. As a result of this unlawful arrest, plaintiff KEITH MURPHY spent approximately four (4) months making court appearances in connection with the charges against him before they were dismissed on November 20, 2008.

26. As a result of this unlawful arrest, plaintiff KEITH MURPHY was determined to have violated his parole for which he spent approximately one (1) year in prison.

27. As a result of the foregoing, plaintiff KEITH MURPHY sustained, *inter alia*, physical injuries, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "27" with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “33” with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. As a result of the forgoing plaintiff KEITH MURPHY was subjected to an unreasonable and intrusive strip search in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

39. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without consent, a valid warrant, probable cause or privilege or consent in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. Defendants misrepresented and falsified evidence before the District Attorney.

42. Defendants did not make a complete and full statement of facts to the District Attorney.

43. Defendants withheld exculpatory evidence from the District Attorney.

44. Defendants were directly and actively involved in the initiation of criminal proceedings against KEITH MURPHY.

45. Defendants lacked probable cause to initiate criminal proceedings against KEITH MURPHY.

46. Defendants acted with malice in initiating criminal proceedings against KEITH MURPHY.

47. Defendants were directly and actively involved in the continuation of criminal proceedings against KEITH MURPHY.

48. Defendants lacked probable cause to continue criminal proceedings against KEITH MURPHY.

49. Defendants acted with malice in continuing criminal proceedings against KEITH MURPHY.

50. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

51. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in KEITH MURPHY's favor on or about November 20, 2008 when all charges against him were dismissed.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

53. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “52” with the same force and effect as if fully set forth herein.

54. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiffs.

54. As a result of the aforementioned conduct of defendants, plaintiff was subjected to excessive force and sustained physical and emotional injuries.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. The defendants had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the use of excessive force.

57. Defendants further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiffs’ constitutional rights and the injuries or further injuries caused as a result of said failure.

58. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, physical and emotional injuries.

SEVENTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "58" as if the same were more fully set forth at length herein.

60. Defendants created false evidence against plaintiff KEITH MURPHY.

61. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

62. Defendants misled the prosecutors by creating false evidence against plaintiff KEITH MURPHY and thereafter providing false testimony throughout the criminal proceedings.

63. In creating false evidence against plaintiff KEITH MURPHY, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety and was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "64" with the same force and effect as if fully set forth herein.

66. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of

the respective municipality/authority, which is forbidden by the Constitution of the United States.

67. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. utilizing excessive and unreasonable force in effectuating arrests.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

69. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

70. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

71. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff KEITH MURPHY was subjected to unlawful and excessive force resulting in permanent and disabling injuries.

72. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

73. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff KEITH MURPHY's constitutional rights.

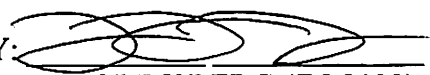
74. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have excessive force imposed upon him;
- D. To be free from unlawful search;
- E. Not to have summary punishment imposed upon him; and
- F. To receive equal protection under the law.

75. As a result of the foregoing, plaintiff is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

WHEREFORE, KEITH MURPHY demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages and one million dollars (\$1,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
July 27, 2011

BY: 
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